

Paint Trade HQ

Legal review pack · prepared 6 October 2026, brief updated 7 October 2026

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Paint Trade HQ — Brief for legal review

Prepared 6 October 2026 for the business owner (Josh Sano) to hand to the reviewing lawyer. Everything in this pack reflects the app as it stands today (code at Round 64, 4 October 2026); the Terms and Privacy Policy drafts were brought up to date on 6 October before being included.

1. What Paint Trade HQ is

Paint Trade HQ is a web app for Australian painting businesses. A painter (the "account holder") signs up, enters their clients and jobs, builds quotes, sends them to the client through a link, and the client accepts the quote on that link with an electronic signature. The app then tracks the job (crew sign-ins by phone with GPS at the moment of sign-in, daily site reports, photos, variations), raises invoices that the client pays by bank transfer, and keeps employee records (onboarding documents, timesheets, employment agreements signed electronically in a separate crew app). An AI assistant ("Lucy", on Anthropic's Claude) writes drafts and a morning brief from the business's own data.

Each painting business is a separate, isolated workspace. Paint Trade HQ never deals with the painter's clients or employees directly; it stores and processes their information on the painter's instructions.

Where it is today: a pre-release tester program with a small number of invited painting businesses. No fees are charged yet. Paid monthly/yearly subscriptions (through Stripe) come later. The app is built and hosted on Emergent (an AI app-building platform) and will move to its own hosting and domain before public launch.

The operating entity (to be filled in by Josh before the lawyer starts): legal entity name, ABN, registered address, support / legal / privacy email addresses, phone, and the state whose law should govern (the drafts say "[Victoria]"; the business is based in **[Josh to confirm state]**). These are the square-bracket placeholders in documents 01 and 02.

2. What is in this pack

File	What it is
00 (this file)	The brief: what the product does and what we are asking for
01 Terms of Service — draft 1.1-draft, 6 Oct 2026	Shown on the app at /terms and accepted at sign-up (version, time and IP recorded on the account)
02 Privacy Policy — draft 1.1-draft, 6 Oct 2026	Shown on the app at /privacy
03 Client-facing terms and the acceptance flow	What a painter's client sees and signs: the default quote terms, the acceptance dialog, the record kept, invoice terms, the warranty line

File	What it is
04 Employment documents	How the crew contracts feature works and the ground rules it is built on
05 Data map	Every category of personal information the app holds, where it is stored, which third parties touch it, and for how long

3. What we are asking the lawyer to do

We are working to a budget. Please quote before starting, do what is necessary for the tester program and the first paying customers first (A, B, C and D), and tell us which of the rest can wait until after launch.

A. Terms of Service (01). Review and finalise for the tester program now, with a note on what changes for public launch. Please look in particular at: the liability cap (greater of fees paid and AUD 100) and the indemnity, given the Australian Consumer Law unfair contract terms rules for small-business standard-form contracts (the painters are small businesses); the right to change terms on 14 days' email notice; closing accounts unused for 12 months; the feedback licence and tester confidentiality in section 1; the governing-law clause; crew members aged 15 to 17.

B. Privacy Policy (02). Review against the Australian Privacy Principles. Specific questions:

1. Is Paint Trade HQ an APP entity now (turnover is under the \$3 million threshold), and should we opt in regardless? The drafts assume we follow the APPs either way.
2. Is the two-role model in section 1 right: we are the responsible entity for account holders, and we process the painter's clients' and employees' information on the painter's behalf?
3. Employee location: the crew app records GPS position only at sign-in and sign-out, plus the distance from the job site, and flags sign-ins outside a per-job radius. The painter sees this. Is the wording adequate, and does the employee-records exemption cover the painter but not us?
4. Overseas disclosure: email (Resend, US), SMS (Twilio, US), AI (Anthropic, US), weather and geocoding (Open-Meteo, Germany), hosting (Emergent — region to be confirmed by Josh), Google and Microsoft (global, only when the painter connects them). Is the consent wording in section 5 enough?
5. Photos of clients' homes are shared through long random links that do not expire (section 4). Is the warning sufficient?
6. Retention: the policy promises deletion 30 days after an account closes. The automated purge is not built yet (today it only reports what would be purged). Should the promise be softened until it is built, or must it be built before launch?
7. Children: crew aged 15 to 17 added by their employer.
8. The Notifiable Data Breaches paragraph.

C. The painter's contract with their client (03). In the app, the accepted quote *is* the contract between the painter and the client. Questions:

1. The client accepts by typing or drawing a signature, entering their name, and ticking "I have read and agree to the terms and conditions and the payment schedule above". The app records name, signature image, time, IP address and the options chosen. Is this a valid electronic signature under the Electronic Transactions Acts? Note: **the agreement checkbox is ticked by default** when the dialog opens. Should it be unticked?
2. Residential painting is "residential building work" in several states. We understand (please confirm and correct) that NSW requires a written contract above \$5,000 and a prescribed-content contract plus HBCF insurance above \$20,000 with a 10% deposit cap; Queensland has similar levels at \$3,300 and \$20,000 under the QBCC Act; Victoria at \$10,000 under the Domestic Building Contracts Act with deposit limits; WA at \$7,500. The app's default quote terms (03 §1) are eight short clauses and the default payment schedule is a 30% deposit, 40% progress, 30% final. Please advise: (a) what the quote and its terms must contain for an accepted quote to be a compliant contract in each state, or whether the app should instead carry a state-specific contract-terms template that the painter attaches; (b) whether the 30% default deposit must be reduced; (c) whether a "this quote is not a compliant building contract above \$X" warning is enough where the painter has not attached one. The app already lets each painter write their own "contract terms" text that prints with the quote.
3. Variations are approved on a link with a typed name only (no drawn signature). Is that enough?
4. The 2-year workmanship warranty default and the "pre-existing substrate defects excluded" liability line: any ACL consumer-guarantee problem with the wording?
5. Invoices: payment by bank transfer only, "Overdue balances may attract interest at 1.5% per month" as the default terms line. Is the interest line acceptable as a default?

D. Employment documents (04). The app never supplies employment contract wording. The painter writes their own templates (the app points them to the business.gov.au Employment Contract Tool and shows a "not legal advice, have it checked" notice on every template). The app fills in fields, collects the crew member's electronic signature, the business countersigns, and the signed PDF is emailed and kept for seven years. Questions: is the disclaimer sufficient to keep Paint Trade HQ out of the employment relationship; is the e-signature record (text as signed, signer, time, IP, typed or drawn, template version) adequate; the "Record the end" wording ("This only records the end in the app. Notice periods, final pay and unfair-dismissal rules apply separately under the Fair Work Act."); and **crew members never see or accept our Terms** — their onboarding sets an "agreed to terms" flag automatically. Does a crew member need to accept anything from us directly?

E. Messaging. Painters send SMS and email through the app, including automated follow-ups, reminders and Google-review requests. The app honours STOP replies and an opted-out flag. Please check the Spam Act position and the wording in Terms §3 "Messages you send" and Privacy §9 "Opt-out".

F. AI. Data from a business's workspace (today's jobs, recent quotes, a client's message history, text to polish) is sent to Anthropic's API under the business owner's own API key. Anthropic's commercial API terms say customer data is not used to train models. Lucy also stores reminders and ideas the owner dictates. Please check Terms §6 and the AI row in Privacy §5, and whether

any further disclosure or consent is needed for the painter's clients' information being processed by Anthropic.

G. Intellectual property and registrations — only what is necessary to start. We are working to a budget. Please tell us which of the following are necessary before the first paying customer, which can wait until after launch, and the cost and timing of each; we will do the necessary ones now and the rest later.

1. **Copyright** in the app (code, design, templates, wording, logo). We understand copyright is automatic in Australia with no register, so no cost to register. **The real question is whether it subsists at all.** Nearly all of the code was written by AI agents (Anthropic's Claude on the Emergent platform, and Claude Code), with Josh directing the work: he decided what to build and how it should behave, reviewed and approved every screen through hundreds of build rounds, and the specs, prototypes and round-by-round records of his decisions are kept in the project's repositories. We understand that Australian law requires a human author who contributed independent intellectual effort (*IceTV v Nine*; *Telstra v Phone Directories*; *Acohs v Ucorp*) and that, unlike the UK, Australia has no "computer-generated works" provision, so purely machine-written code may have no copyright owner. Please advise: (a) whether Josh's direction, selection and review is likely enough for him (and the entity) to be the author of the app, or of which parts; (b) what records of that human contribution we should keep from now on, in what form; (c) what the position is on the parts where copyright is doubtful — trade secret and confidentiality (the code is private; the Terms forbid copying), contract, and the Emergent and Anthropic terms, both of which (we understand) assign any rights in the output to the customer; (d) whether anything about this belongs in the Terms. We are not asking for a research memo; a plain view and a short list of what to do is enough.
2. **Trade mark** for the name "Paint Trade HQ" and the logo with IP Australia (we assumed classes 9 and 42). Necessary now, or can it wait?
3. **Entity, ABN and business name**: confirm what we have is enough for a software business, and whether the app name needs its own registered business name.
4. **People**: a written IP assignment and confidentiality clause for the contractor about to join (Adam), so what he produces belongs to the entity. We assume this one is necessary now.
5. The © **notice** on the app and the **licence clause** already in Terms §11: confirm the wording.

Not asked for now: design registration, patents, overseas registrations, domain-name variants — unless you think one of them is necessary to start.

H. Later: subscriptions. When paid plans start (Terms §8): auto-renewal disclosure, price-change notice, refunds under the ACL, Stripe billing. A note now on what section 8 must say is enough; the detail can wait.

I. Tester program. Is Terms §1 (free trial, prototype, keep your own copies, feedback licence, confidentiality, access codes) enough, or do testers need a separate short tester agreement?

J. Outside the documents. Any insurance the entity should hold (professional indemnity, cyber), and whether the entity structure is right for a software business. If this is out of scope, say so.

4. Placeholders Josh fills in before the lawyer starts

In 01 and 02: [Legal entity name], [ABN], [registered address] / [address], [support email], [legal email], [privacy email], [phone], [Victoria] (governing law state) and the hosting [Region — confirm].

5. Facts the lawyer may ask about

- Sign-up records the Terms version, the time and the IP address on the account. When the Terms version changes, the next sign-in shows a one-time "we've updated our Terms" banner with a Dismiss that records acceptance again. No blocking modal.
- Passwords are hashed; traffic is HTTPS; each business's data is separated and that separation is tested automatically on every release; third-party tokens are encrypted at rest or held as revocable tokens.
- Nothing signed (quotes, variations, employment documents) is ever edited or hard-deleted; signed rows are append-only apart from status.
- Signature images for employment documents are private (never a public link). The client's quote signature is stored with the quote and shown on the quote PDF.
- The painter's own quote terms, contract terms, warranty text and invoice terms are editable by the painter; the app ships defaults (03) that the painter can replace.

Paint Trade HQ — Terms of Service

Draft for review · Version 1.1-draft · 6 October 2026

Draft prepared for the tester program and brought up to date with the app as it stands on 6 October 2026. Square-bracket items must be filled in before publishing.

These terms are a contract between you and **[Legal entity name] (ABN [ABN])** trading as Paint Trade HQ ("we", "us", "Paint Trade HQ"), of [registered address], for the use of the Paint Trade HQ web app, employee app, client links and related services (the "Service").

By creating an account, ticking the agreement box, or using the Service, you agree to these terms and to our Privacy Policy. If you are creating an account for a business, you confirm you are authorised to bind that business, and "you" means that business.

1. The tester program (applies until we say otherwise)

The Service is currently a **pre-release product** used by a small group of invited painting businesses. While the tester program runs:

- **No fee is charged.** Your account is on a free trial. We may extend the trial or convert it to a paid plan later, but only with at least 30 days' notice and never without your consent to pay.
- **It is a prototype.** Features may change, break, or be removed between one day and the next. The app is not guaranteed to be available, accurate or complete.
- **Keep a copy of anything important.** We may reset, migrate or wipe test data as part of development. Do not treat the Service as your only record of quotes, invoices, payments, timesheets or staff documents. Export or screenshot what you need.
- **Real clients at your own risk.** You may use the Service with real clients and staff, but you carry the responsibility for anything you send them (quotes, invoices, SMS, email, completion reports). Read before you send.
- **Feedback.** Anything you tell us about the Service (bug reports, ideas, screenshots, recordings) may be used by us to improve the product without payment or credit to you. Do not include other people's personal information in feedback unless it is necessary to show the problem.
- **Confidentiality.** Unreleased features, pricing and screenshots of the tester build are confidential until we launch publicly. Please do not post them publicly.
- **Access codes.** Your tester access code is for you and your business only. Do not share it. After five wrong attempts the code is locked and you are emailed.

2. Your account

- **Owner account.** The person who signs up is the account owner and is responsible for everything done under the business's workspace, including by team members and crew.
- **Team members and crew.** You may add team members (office staff with admin access) and crew (employees who use the employee app). You are responsible for giving them access only to what they need, for removing access when they leave, and for their conduct in the Service.
- **Credentials.** Keep passwords, QR onboarding links and calendar feed links private. Tell us at once if you think an account has been compromised. You can sign out other devices from Settings.
- **Accuracy.** Keep your business details (legal name, ABN, address, contact details, bank details) accurate. They are printed on the quotes, invoices and reports you send.
- **Age.** You must be at least 18 to create an account. Crew members must be at least 15 and added by their employer.

3. Your data and your clients' data

- **You own your data.** Everything you enter or upload (clients, leads, quotes, invoices, projects, photos, timesheets, staff records, messages) stays yours. We only use it to run the Service for you, as described in the Privacy Policy.
- **Each business is separate.** Your workspace is isolated from every other business on Paint Trade HQ. Nobody outside your workspace can see your data, and you cannot see theirs.
- **You are responsible for the people in your records.** You confirm that you have the right to enter your clients', leads' and staff members' details, and that you will handle their personal information lawfully, including under the *Privacy Act 1988 (Cth)* where it applies to you. You are the party they should contact about their information; we act on your instructions.
- **Messages you send.** SMS and email sent through the Service (including automated follow-ups, reminders and review requests) are sent by you, in your name. You must comply with the *Spam Act 2003 (Cth)*: only message people who have agreed to hear from you or with whom you have a business relationship, identify your business, and honour opt-outs. The Service stops automated messages to a client who replies STOP or is marked opted-out; you must not work around that.
- **Photos and documents.** You must have permission to photograph a client's property and to upload staff documents (licences, IDs, contracts). See the Privacy Policy for how photos are stored and shared.

4. Quotes, invoices, payments and contracts

- **We are a tool, not a party.** Quotes, variations, invoices, credit notes, completion reports and contracts are your documents to your clients. You set the prices, terms, warranty and tax treatment. We do not check them.
- **Tax.** You are responsible for GST, invoice requirements under Australian tax law, and keeping records for the ATO.

- **Client acceptance.** When a client accepts a quote or approves a variation through their link, the Service records who accepted, when, and from which address. Whether that acceptance is binding between you and your client is a matter for you and them.
- **Payments.** Your clients pay you directly by bank transfer using the bank details printed on your invoices, or by any other method you record (cash, card in person, cheque). The Service does not take payments from your clients and never holds card details. Payments you record are your record only.
- **Library prices and AI price suggestions** are starting points. Check them before you rely on them.

5. Integrations you connect

You may connect Google Drive or Microsoft OneDrive for file storage, Google Calendar, Apple Calendar (iCloud) or Microsoft 365 (Outlook) calendar, Gmail, Microsoft 365 or IMAP email, and Twilio for SMS. Each is governed by its provider's terms. We access them only for the purpose you connected them for (for example, storing photos in your Drive, showing your calendar, sending and receiving messages) and you can disconnect them at any time in Settings. We are not responsible for changes, outages or charges from those providers.

6. AI features

Some features use an AI model from Anthropic (Claude): the assistant ("Lucy"), the morning brief, client summaries and drafting text for messages and quotes. AI output can be wrong, incomplete or out of date. It is a draft for you to check, not advice. Do not send AI output to a client or staff member without reading it. Do not rely on it for legal, tax, safety or employment decisions. AI features only see your own workspace's data, and the assistant keeps only the reminders and ideas you give it. Crew members have no AI features.

7. Acceptable use

You must not:

- use the Service for anything unlawful, or to send spam, threats or misleading messages;
- upload malware, or try to access another business's workspace, our systems or other users' accounts;
- copy, resell, reverse-engineer or build a competing product from the Service;
- remove branding, notices or watermarks;
- use automated tools to scrape or overload the Service;
- enter personal information about anyone you do not have a lawful reason to hold.

We may suspend or remove content or accounts that break these rules. We will tell you why unless the law prevents it.

8. Fees and plans (after the tester program)

When paid plans start: prices will be shown in Australian dollars including GST; you will be asked to agree before any charge; billing is monthly or yearly in advance through Stripe; you can cancel any time and keep access to the end of the paid period; we may change prices with at least 30 days' notice, which applies from your next renewal. Refunds are given where the *Australian Consumer Law* requires them and otherwise at our discretion.

9. Availability, backups and support

We aim to keep the Service running but do not promise any uptime during the tester program. We take regular backups for our own recovery, but those are not a substitute for your own copies (see section 1). Support is by email at [support email] during Australian business hours; response times are best-effort.

10. Ending your account and getting your data out

- **You can leave any time.** Ask us to close the account, or stop using it.
- **Export.** While your account is open you can download your quotes, invoices, credit notes, reports and signed documents as PDF, and your daily reports, timesheets and sign-in records as CSV. Ask us if you need a full export.
- **Deletion.** After an account is closed we keep its data for 30 days so you can change your mind, then delete it from our live systems. Backups are overwritten within a further 60 days. We may keep records we must keep by law (for example tax records of payments made to us).
- **We may close an account** for breach of these terms, if it is unused for 12 months, or if we shut the Service down. We will give at least 30 days' notice where we can, so you can export your data.

11. Intellectual property

We own the Service, its design, code, templates and the Paint Trade HQ name and logo. You get a non-exclusive, non-transferable licence to use the Service for your business while your account is open. You keep ownership of your data and of documents you create with the Service. You give us a licence to store, copy and transmit your data only as needed to run the Service for you.

12. Warranties and liability

- Nothing in these terms excludes rights you have under the *Australian Consumer Law* that cannot be excluded. Where a guarantee applies and can lawfully be limited, our liability is limited to supplying the Service again or paying the cost of having it supplied again.
- Otherwise, the Service is provided "as is" during the tester program. We do not promise it is error-free, secure, or fit for a particular purpose.

- To the extent the law allows, we are not liable for loss of profit, business, data or goodwill, or for indirect or consequential loss, and our total liability to you in any 12-month period is limited to the greater of the fees you paid us in that period and AUD 100.
- We are not liable for the acts of third-party providers (section 5), for your clients or staff, or for documents and messages you send.

13. Indemnity

You indemnify us against claims, losses and costs arising from your breach of these terms, your unlawful use of the Service, or documents and messages you send to clients or staff, except to the extent we caused the loss.

14. Changes to the Service or these terms

We may change the Service at any time. We may change these terms by posting a new version and, for changes that reduce your rights, emailing account owners at least 14 days before they take effect. Continuing to use the Service after that date means you accept the new terms. The current version and its date are always shown at the top of this page.

15. General

These terms are governed by the laws of [Victoria], Australia, and the courts of that state. If any part is unenforceable, the rest still applies. Our failure to enforce a right is not a waiver. You may not assign these terms without our consent; we may assign them to a successor of the business. Notices to you go to the account owner's email. Notices to us go to [legal email].

16. Contact

[Legal entity name] · ABN [ABN] · [address] · [support email] · [legal email]

Paint Trade HQ — Privacy Policy

Draft for review · Version 1.1-draft · 6 October 2026

Draft prepared for the tester program, written to the Australian Privacy Principles (APPs) in the *Privacy Act 1988 (Cth)*, and brought up to date with the app as it stands on 6 October 2026. Square-bracket items must be filled in before publishing. Even if the business is under the \$3 million small-business threshold, publishing and following this policy is expected by testers and by the app stores.

This policy explains what personal information **[Legal entity name] (ABN [ABN])** trading as Paint Trade HQ ("we", "us") collects through the Paint Trade HQ web app, employee app and client links (the "Service"), why, who we share it with, and your rights.

1. Two kinds of people, two roles

- **Account holders** (painting business owners, their office team and crew). We collect your information directly to run your account. For this information we are the organisation responsible under the Privacy Act.
- **People in an account holder's records** (their clients, leads, suppliers and staff). The painting business enters and controls this information; we store and process it on their instructions. If you are a client or employee of a painting business that uses Paint Trade HQ, that business is your first point of contact about your information. We help them respond, and we apply this policy to how we handle it.

2. What we collect

When a business signs up: business name, owner name, email address (used as the sign-in name), mobile number, password (stored as a one-way hash), tester access code, agreement to the terms with date and version, IP address and browser details at sign-up.

Business profile: trading name, ABN, address, phone, website, logo, signature image, bank details for invoices, Google review link, warranty and care-note wording, invoice and quote settings.

Team members and crew: name, email, phone, role, start date, pay rate, date of birth (for birthday reminders), emergency contact, licences and qualifications with expiry dates and uploaded copies, contract and induction records, training progress, timesheets, leave, strikes and recognition notes, feedback, equipment issued, profile photo.

Timeclock location. When a crew member signs in or out of a job in the employee app, the app records the time and, if the phone allows it, the GPS position and its distance from the job site. Each job has a radius set by the business; a sign-in outside it is marked "off site" with the distance.

This is used to show the owner who is on site and to flag sign-ins far from the job. Location is captured only at sign-in and sign-out, not continuously.

Clients and leads (entered by the business): name, company, phone, email, site and postal address, how they found the business, notes, tags, call and message history, quote, invoice, payment and project history, review and follow-up preferences, SMS opt-out status.

Quotes, projects and photos: measurements and prices, site photos and before/after photos including any mark-ups and notes, daily site reports, variation approvals with the approver's name, time and IP address, completion reports.

Messages: emails and SMS sent and received through the Service, including through a connected Gmail, Microsoft 365 or IMAP inbox and a connected Twilio number.

Client link activity: when a quote, invoice, variation or completion report link is opened, we record the time, IP address and browser, and whether it was accepted, declined or paid.

Payments: clients pay the business directly by bank transfer or another method the business records (cash, card in person, cheque). We hold no card details. Payments are stored as the business enters them.

Connected services: access tokens for Google Drive, Google Calendar, Gmail, Microsoft 365 (OneDrive, Outlook calendar and mail), IMAP and Apple Calendar (iCloud app-specific password, encrypted at rest), and Twilio credentials, so the Service can act on the business's behalf.

Tester program and product updates: feedback and screenshots sent through the in-app helper, tester invite codes and failed-code attempts, and which product-update notices each user has seen.

Usage and technical data: log-in times and devices, error reports from the app (page, error text, browser), and basic usage of features. We do not use advertising trackers.

3. How we use it

- To run the Service: accounts, quotes, invoices, projects, calendars, timesheets, messaging, reports.
- To send messages the business asks us to send: quotes, invoices, reminders, follow-ups, review requests, completion reports, welcome and onboarding emails.
- To keep accounts safe: sign-in security, rate limiting, fraud and abuse prevention, error diagnosis.
- To improve the Service, using aggregated or de-identified information where possible.
- **AI features.** Some features send parts of a business's own data (for example today's jobs, recent quotes, a client's message history, or text to polish) to Anthropic's AI model (Claude) to produce a summary or draft. Only that business's data is included, and crew members have no AI features. Anthropic's commercial terms do not permit it to use the data to train models. See section 5.

- To meet legal obligations, such as tax records and responding to lawful requests.

We do not sell personal information. We do not use it for advertising.

4. Photos and shared links — please read

- **Client links.** Quotes, invoices, variations and completion reports are shared with clients through links containing a long random code. Anyone who has the link can open it without a password. Businesses should send links only to the client and ask clients not to forward them.
- **Photos.** When a business connects Google Drive or Microsoft OneDrive, site and quote photos are stored in that business's own Drive or OneDrive. To display them in the app and on client links, each photo file is set to "anyone with the link can view". The link is long and random, but it does not expire, so anyone who obtains it can view the photo. Do not photograph anything you would not want a client to see, and blur or crop people who have not agreed to be photographed. When neither is connected, photos are stored inside the Service.
- **Calendar feed.** A business can subscribe a phone calendar to a feed link that shows jobs, client names, addresses and invoice due amounts. The link is the only protection; reset it in Settings if it is shared by mistake.
- **Staff documents** (licences, IDs, contracts) are not stored in Drive and are not shared by link. They are visible only to the business's admin users and to the staff member concerned.

5. Who we share it with

We share personal information only with providers that help us run the Service, on our instructions and under contracts or terms that restrict their use of it:

Provider	What for	Where data is processed
Emergent	Servers and database for the Service	[Region — confirm]
Resend	Sending email (quotes, invoices, reports, notifications)	United States
Twilio	Sending and receiving SMS, when the business connects a number	United States
Stripe	Our own subscription billing, when paid plans start (no client payments)	United States, Australia
Google (Drive, Calendar, Gmail)	Photo storage, calendar overlay, inbox sync — only when the business connects them	Global
Microsoft 365 (OneDrive, Outlook calendar, mail)	Photo storage, calendar overlay, inbox sync — only when the business connects them	Global
Apple (iCloud CalDAV)	Calendar overlay, when connected	Global

Provider	What for	Where data is processed
Anthropic (Claude)	The assistant, morning brief, summaries and drafts	United States
Open-Meteo	Weather in the morning brief; turning job addresses into map positions	Germany

Some of these providers are outside Australia, mainly in the United States. By using the Service you consent to that overseas disclosure, and we take reasonable steps to ensure those providers handle the information in a way consistent with the Australian Privacy Principles.

We may also disclose information: to the business that entered it; when the law requires it; to our lawyers, accountants and insurers under confidentiality; and to a buyer of the business, who must honour this policy.

6. Security

Passwords are hashed. Traffic is encrypted in transit (HTTPS). Sessions expire and can be signed out from other devices. Each business's data is separated from every other business's, and this separation is tested automatically as part of our release process. Third-party credentials are encrypted at rest or held only as revocable tokens. Access to production systems is limited to the people who need it. No system is perfectly secure; if we become aware of a data breach likely to cause serious harm, we will notify affected people and the Office of the Australian Information Commissioner as the *Notifiable Data Breaches* scheme requires.

7. Cookies and local storage

The app stores your sign-in token, role and a few display preferences in your browser's local storage so you stay signed in and the app remembers your settings. We do not use third-party advertising cookies.

8. How long we keep it

- **While the account is open:** for as long as the business keeps it.
- **After an account is closed:** 30 days in live systems for recovery, then deleted; backups are overwritten within a further 60 days.
- **Tester program:** test data may be reset or wiped as part of development (see the Terms). Keep your own copies.
- **Records we must keep:** payment and tax records for as long as the law requires (generally 5 years).
- **Client link activity, error reports and security logs:** up to 12 months.

9. Your rights

- **Access and correction.** Account holders can see and edit most of their information in the app. Anyone can ask us for a copy of the personal information we hold about them, or ask us to correct it, by emailing [privacy email]. We respond within 30 days. If you are a client or employee of a painting business, we will usually direct the request to that business and help them answer it.
- **Deletion.** Ask the business, or us, to delete your information. We delete it unless we must keep it by law.
- **Opt-out of messages.** Reply STOP to any SMS, or use the unsubscribe link in marketing emails. Service messages about your own quote or invoice may still be sent by the business.
- **Withdraw consent for location.** Crew can deny location permission on their phone; sign-ins will then be recorded without a position.
- **Complaints.** Email [privacy email] and we will acknowledge within 7 days and respond within 30. If you are not satisfied, you can complain to the Office of the Australian Information Commissioner at oaic.gov.au.

10. Children

The Service is for businesses. We do not knowingly collect information from anyone under 15. Crew members aged 15 to 17 may be added by their employer, who is responsible for having their guardian's consent where required.

11. Changes to this policy

We will post any change here with a new version and date, and email account owners about changes that materially affect how we handle their information. The current version is always the one shown at the top.

12. Contact

Privacy Officer, [Legal entity name] · [address] · [privacy email] · [phone]

03 — Client-facing terms and the acceptance flow (what a painter's client sees and signs)

Pulled from the app code on 6 October 2026. The painter can edit every piece of wording below in Settings; these are the defaults the app ships with.

1. Default quote terms (printed on every quote unless the painter replaces them)

1. **Quote Validity** — This quote is valid for the number of days shown above. Prices may be reviewed after that if material costs shift.
2. **Deposit & Payment** — A deposit secures your start date. Progress and final payments are due per the milestone schedule.
3. **Variations** — Any changes to scope, colour or substrate are captured as a written variation and priced before works proceed.
4. **Access & Preparation** — Client to provide clear access to work areas. Fragile items and valuables to be removed by the client prior to start.
5. **Site Conduct** — We keep the site tidy, dust-sheet all surfaces, and clean up at end of each day.
6. **Workmanship Warranty** — All labour is warranted for 2 years from practical completion against defective preparation or application.
7. **Cancellations** — Cancellations within 48 hours of the start date may forfeit the deposit to cover crew scheduling.
8. **Liability** — We carry \$20M public liability insurance. Damage caused by pre-existing substrate defects is excluded.

The quote also carries: the painter's business name, ABN, address, phone, email and licence number (as entered in Settings); a validity period in days (default 30); the payment schedule (default milestones: Deposit 30% on acceptance, Progress 40%, Final 30% on completion — the painter can change the number of milestones and percentages); GST shown separately; an optional "About us" block with public-liability and warranty figures the painter types in.

Contract terms template. Separately from the eight clauses above, the painter can write a longer "contract terms" text (Settings > Estimates > Terms) that prints with the quote. The app ships no wording for it; it is empty until the painter writes it.

2. How a client accepts a quote

The client receives an email or SMS with a link to a public page (no login; the link contains a long random token). The page shows the full quote, the terms above, the payment schedule and any optional extras the client can tick on or off.

Accept dialog ("Accept this quote · EST-0192 · Sano Painting Co."): - Name field. - Signature: **draw** on a signature pad, or **type** the name (rendered as a signature image). - Checkbox: **"I have read and agree to the terms and conditions and the payment schedule above."** — this box is **ticked by default** when the dialog opens. - Line under it: "Your signature, name, the date and time, and the extras you chose are saved with the quote." - Button: Accept.

What the app records on acceptance: signer name, the signature image, the time (UTC), the client's IP address, the accepted optional extras, and the quote content as it was at that moment (quotes are frozen once accepted). The painter is shown "Accepted by {name} on {date}" and the signature prints on the quote PDF. An "accepted" event is written to the quote's history, a project is created from the quote, and the deposit invoice is created as a draft for the painter to review and send.

Decline: the client can decline with an optional reason; recorded the same way without a signature.

3. Variations (changes to the job after acceptance)

The painter sends a variation (added or removed work with a price) to the client by email or SMS. The client opens a link and approves or declines by **typing their name** (no drawn signature); the app records the name, time and IP address. Approved variations are added to the job total.

4. Invoices

- Raised from the accepted quote's payment schedule (deposit / progress / final) or as stand-alone invoices.
- Sent by email (PDF attached) and/or SMS with a link to a public invoice page. The page shows the invoice, "How to pay" with the painter's bank details (account name, BSB, account number, reference = the invoice number) and the payment terms.
- **Default payment terms line:** "Payable within 14 days of the issue date." followed by the painter's own invoice terms text. The app's default for that text is: **"Overdue balances may attract interest at 1.5% per month. Title to materials passes on payment in full."**
- Default footer: "Thank you for your business."
- No online card payment. The painter records payments received (bank transfer, cash, card in person, cheque).
- Credit notes can be issued against an invoice.

5. Completion report and warranty

At the end of a job the painter can send a completion report (before/after photos, scope, a warranty and care-notes section). **Default warranty text:** "All workmanship is covered by our 2-year warranty. If any area of the finish lifts, peels or flakes because of how it was applied, we come back and fix it at no cost." The painter can edit it.

6. Public links generally

Quotes, invoices, variations and completion reports are opened through links containing a long random code; no password. The app records when a link is opened (time, IP, browser). Links do not expire. The client can download the PDF and print from the page. Every public page carries the painter's business details; the pages are branded Paint Trade HQ in the footer with links to our Terms and Privacy Policy.

04 — Employment documents (the Contracts feature)

How the app handles employment agreements and related documents between a painting business and its crew. Built September 2026 (Round 22). Pulled from the specification and the code on 6 October 2026.

1. Ground rules the feature is built on

1. **No legal advice from the app.** The app never ships contract wording. Every template screen shows this notice: *"Your document, your responsibility. Paint Trade HQ fills in the fields, collects signatures and keeps the record. It does not give legal advice. Have the wording checked by a lawyer or Fair Work, and keep it in line with the award and the National Employment Standards."* The employment template adds: *"For employment agreements, the free Employment Contract Tool on business.gov.au produces award-based wording you can paste here."*
2. **Electronic signature record.** For every signature the app stores the exact document text as signed (frozen per issued document), the signer, the timestamp (UTC, shown in the business time zone), the IP address, the method (typed or drawn) and the template version. The crew member always receives a copy.
3. **Nothing signed is ever edited or hard-deleted.** Issued documents are append-only apart from status changes, the countersignature, the "also given" checklist and audit entries. "Withdraw" exists only before signing and keeps the record.
4. **Ending employment is recorded, not performed.** "Record the end" stores a date and a note and shows: *"This only records the end in the app. Notice periods, final pay and unfair-dismissal rules apply separately under the Fair Work Act. The app does not send any letter."*
5. **Retention.** Issued documents, signatures and PDFs are kept for at least seven years and treated as records, not app data, by any purge or export.
6. **Signature images are private** — never on a public link.
7. **Unfilled placeholders stay visible** (highlighted) to the admin before sending and to the crew member when signing; the app never silently blanks them.

2. Document types

Employment agreement · Confidentiality · Code of conduct · Safety agreement · Social media & photo consent · one "Other" the business names. One template per type per business, written by the business; saving makes a new version; documents already sent keep the version they were sent with.

3. Fields the app fills in

[EMPLOYEE FULL NAME] [EMPLOYEE ADDRESS] [POSITION] [EMPLOYMENT TYPE] (Casual / Part-time / Full-time) [AWARD CLASSIFICATION] [START DATE] [OFFER DATE] [HOURLY RATE] [CASUAL LOADING] (default 25%) [ORDINARY HOURS] [NOTICE PERIOD] [BUSINESS NAME] [ABN] [BUSINESS ADDRESS] [DATE SIGNED]. Hints shown to the business: "From the Fair Work pay guide for your award." and "Must be at or above the award rate for the classification."

4. Flow

1. The business issues one or more documents to a crew member; the crew member is emailed and sees them in the crew app.
2. The crew member reads the filled document, signs (draw or type) and can ask a question (goes to the owner).
3. The business countersigns by typing the owner's full name exactly.
4. The app renders a signed PDF (filled text, then a signature block with crew name, method, time, IP; business signer and time; footer "Template v{n} · Document {ID} · Paint Trade HQ record"), emails it to the crew member and the owner, and stores it privately on the employee record.
5. **"Also given" checklist** on employment documents, with links to the official copies: Fair Work Information Statement; Casual Employment Information Statement (casual only); Superannuation standard choice form; Tax file number declaration. The business ticks each with a date.
6. Replace with a new version (old becomes superseded once the new one is countersigned); Record the end; Withdraw before signing.

5. Crew app and crew data

- Crew members sign in to a separate employee web app with a QR onboarding link from their employer.
- The onboarding wizard collects: name, phone, email, address, emergency contact, date of birth, licences and qualifications with uploaded copies (15 MB cap per file), bank and super details if the business asks for them, a profile photo. **The wizard sets an "agreed to terms" flag automatically; crew members are not shown Paint Trade HQ's Terms or Privacy Policy.**
- Crew members can be 15 or older (Terms §2); Privacy §10 says 15 to 17 need the employer to have guardian consent where required.
- Sign-in/sign-out on a job records time and, if the phone allows, GPS position and distance from the job site; sign-ins outside the job's geofence radius are flagged "off-site" with the distance. Location is not tracked between sign-in and sign-out.
- Staff documents (licences, IDs, contracts) are visible only to the business's admin users and to the staff member concerned; never on a public link.
- Timesheets, leave, strikes and recognition notes, training progress, equipment issued and performance ratings (1–10 with a 90-day score) are kept by the business.

05 — Data map (what the app holds, where, who touches it, how long)

Pulled from the code on 6 October 2026. "Business" = the painting business that holds the account. "We" = Paint Trade HQ.

1. Categories of personal information

Category	About whom	Entered by	Examples
Account holder	Business owner, office team	Themselves	Name, email (sign-in), mobile, hashed password, Terms version + acceptance time + IP, tester access code, sign-in times and devices
Business profile	The business	Owner	Trading name, ABN, address, licence number, logo, signature image, bank details, Google review link, quote/invoice/contract wording
Crew	Employees	Owner and the employee (onboarding)	Name, contact details, address, emergency contact, date of birth, pay rate, award classification, licences/qualifications with uploaded copies, employment documents and signatures, timesheets, sign-in GPS positions and off-site flags, leave, strikes/recognition, training progress, equipment issued, performance ratings, profile photo
Clients and leads	The business's customers	Owner/team	Name, company, phone, email, site and postal address, source, notes, tags, call/message history, quotes, invoices, payments, projects, review and follow-up preferences, SMS opt-out
Other contacts	A client's additional contacts	Owner/team	Name, role, email, phone, "gets quotes / gets invoices" flags
Job records	Clients' properties	Owner/team/crew	Measurements, prices, site photos and before/after photos (with mark-ups), daily reports, variations with approver name/time/IP, completion reports
Messages	Clients, crew	Business (sent), clients (received)	Email and SMS sent and received through the app, including via a connected Gmail / Microsoft 365 / IMAP inbox and a connected Twilio number
Public-link activity	Clients	Automatic	Time, IP address and browser when a quote/invoice/variation/report link is opened; accepted/declined/paid
Quote acceptance	Clients	The client	Signer name, signature image, time, IP, options chosen

Category	About whom	Entered by	Examples
Payments	Clients	Business	Bank-transfer / cash / card-in-person / cheque payments as the business records them (no card data)
Connected services	The business	Owner	OAuth tokens for Google Drive/Calendar/Gmail, Microsoft 365 (OneDrive, Outlook calendar, mail), IMAP credentials, Apple iCloud app-specific password (encrypted at rest), Twilio credentials
AI	The business	Automatic / owner	Prompts and responses for drafts and the morning brief; reminders and ideas the owner gives Lucy; per-business audit log of AI calls and daily usage
Tester program	Testers (owners)	Testers	Feedback messages and screenshots sent through the in-app helper, sign-up leads, invite codes, failed-code attempts
Product updates	All users	Automatic	Which "what's new" updates a user has seen or snoozed
Technical	All users	Automatic	Error reports (page, error text, browser), request timing logs (route, duration, business id), security/rate-limit logs

2. Where it is stored

Data	Where
Everything above except files	MongoDB database on the Emergent hosting platform (region: Josh to confirm)
Photos, attachments, staff documents, signatures, PDFs	Built-in store (today: inside the database as encoded data; a Google Cloud Storage bucket is planned before testers upload real photos), or the business's own Google Drive , or the business's own Microsoft OneDrive — the business chooses in Settings. Staff documents and signature images are always private (never a public link). Photos in Drive/OneDrive are set to "anyone with the link can view" so they can be shown on client links
Browser	Sign-in token, role and a few display preferences in local storage; no advertising cookies

3. Third parties that process personal information

Provider	What for	Data sent	Where	When
Emergent	Hosting (servers, database)	Everything	Region to confirm	Always (until the move to own hosting)
Resend	Sending email	Recipient address, subject, body, PDF attachments	United States	Every email the app sends

Provider	What for	Data sent	Where	When
Twilio	SMS sending and receiving	Phone numbers, message text	United States	Only when the business connects a Twilio number
Anthropic (Claude API)	AI drafts, morning brief, assistant	Parts of the business's own data: today's jobs, recent quotes, a client's message history, text to polish; the owner's reminders/ideas	United States	Under the business owner's own API key; Anthropic's commercial terms: not used for training
Open-Meteo	Weather for the brief; geocoding job addresses	Job suburb/address coordinates	Germany (EU)	Daily brief; when an address is saved
Google	Drive storage, Calendar overlay, Gmail inbox sync	Photos/files; calendar events; emails	Global	Only when the business connects them
Microsoft	OneDrive storage, Outlook calendar, Microsoft 365 mail	Photos/files; calendar events; emails	Global	Only when the business connects them
Apple	iCloud calendar overlay	Calendar events	Global	Only when the business connects it
Stripe	Our subscription billing (later)	Owner's card details (held by Stripe, not us)	US/Australia	Not yet
marker.js (library)	Photo mark-up tool in the browser	None leaves the browser	—	—

No advertising or analytics trackers.

4. Retention today

Data	Kept
Everything in an open account	While the account is open
Archived items (quotes, clients, projects, reports, ratings)	Soft-deleted ("archived") and restorable; a nightly job reports what is older than 30 days but does not yet delete it (the 30-day hard purge is planned)
Closed accounts	Policy says 30 days then deletion, backups within a further 60 days — not automated yet
Employment documents, signatures, signed PDFs	At least 7 years, treated as records

Data	Kept
Quote/invoice/variation acceptance records and events	With the document (never edited or hard-deleted)
Public-link activity, error reports, security logs	Policy says up to 12 months; no automated trim yet
AI audit log and cached briefs	Kept per business; no trim yet
Tester feedback	Kept by the platform admin; exported for development

5. Who can see what

- A business's admin users: everything in their workspace. Team members can be limited per module (customisable team access).
- Crew: their own records, documents, timesheets, the jobs they are assigned, the crew-side training and equipment screens. No AI.
- Clients: only their own quote/invoice/variation/report pages via the links.
- The Paint Trade HQ platform administrator (Josh): tester invites, sign-up leads, tester feedback, product updates across all businesses. Not the businesses' client or job data through the app (the hosting provider's database is accessible to the operator for support and backups).
- Tenant separation is tested automatically on every release.